Equal Opportunities (v1.0.0)

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Policy Statement

The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society. The Equality Act 2010(Amendment) Regulations enshrine these vital protections from EU Law into the domestic legislation of England, Scotland and Wales.

Bluestar Care & Support- Bluestar Resourcing is committed to achieving a working environment that provides equality of opportunity and freedom from discrimination as defined in the Equality Act 2010 . Bluestar Care & Support- Bluestar Resourcing is also committed to building a workforce that is diverse and reflects the community around us.

Bluestar Care & Support- Bluestar Resourcing aims to promote equal treatment for all employees and every service user, and this is managed in compliance with equal opportunities legislation and accepted codes of good practice and the Equality Act 2010. These are regularly reviewed using the Equality and Human Rights Commission Guidance. We aim to ensure that no job applicant, staff member, volunteer, organisation, or individual to whom we provide services will be discriminated against.

Protected Characteristics

We understand discrimination to mean the protected characteristics defined within The Equality Act 2010 , which are as follows:

Age

This means a person or persons belonging to a particular age group. An age group includes people of the same age and people of a particular range of ages. Where people fall in the same age group, they share the protected characteristics of age.

Disability

Within the Act, a person has a disability, if they have a physical or mental impairment and the impairment has a substantial and long-term adverse effect on their ability to perform normal day-to-day activities. For the Act, these words have the following meanings:

Substantial means more than minor or trivial.

Long-term means that the effect of the impairment has lasted or is likely to last for at least twelve months (special rules are covering recurring or fluctuating conditions).

Normal day-to-day activities include everyday things like eating, washing, walking, and going shopping. The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society. The Equality Act 2010 (Amendment) Regulations enshrine these vital protections from EU Law into the domestic legislation of England, Scotland and Wales.

People who have had a disability in the past that meets this definition are also protected by the Act.

Progressive Conditions Considered to be a Disability

There are additional provisions relating to people with progressive conditions. People with HIV cancer or multiple sclerosis are protected by the Act from the point of diagnosis. People with some visual impairments are automatically deemed to be disabled. Where people share the same disability, they share the protected characteristics of disability.

Gender Reassignment

This is defined for the Act as where a person has proposed, started, or completed a process to change their sex. A transsexual person has the protected characteristics of gender reassignment.

A woman making the transition to be a man and a man making the transition to be a woman both share the characteristic of gender reassignment, as does a person who has only just started on the process of changing their sex and a person who has completed the process.

Marriage and Civil Partnership

The Equality Act 2010 prohibits discriminatation in employment because a person is married or in a civil partnership.

The Equality Act 2010 defines a person as married or in a civil partnership when they are legally married or in a civil partnership. Marriage can either be between a man and a woman, or between partners of the same sex. Civil partnership is between partners of the same sex. People do not have this characteristic if they are:

- People who are not married or civil partners do not have this protected characteristic
- A person who is engaged to be married is not married and therefore does not have this protected characteristic
- Living with someone as a couple but neither married nor civil partners
- A divorcee or a person whose civil partnership has been dissolved is not married or in a civil partnership and therefore does not have this protected characteristic.

Pregnancy, Maternity and Breast Feeding

A woman remains protected in her employment during the period of the pregnancy and any statutory maternity leave to which she is entitled. This is now separate from protection on grounds of sex, which is not available to a woman during her pregnancy and maternity. It is unlawful to take into account an employee's period of absence due to pregnancy-related illness when making a decision about her employment. Less favourable treatment on grounds of breastfeeding constitutes direct discrimination on grounds of sex, and this applies in the workplace as in other settings covered by the 2010 Act. Refer to the Equality and Diversity Policy for more details.

Race

For the Act, race includes nationality and ethnic, or national origins. People who have or share characteristics of colour, nationality, or ethnic or national origins can be described as belonging to a particular racial group. Examples include:

- Colour includes black or white
- Nationality includes being British, Australian, or Swiss
- Ethnic or national origins include being from a Roma background or of Chinese heritage
- A racial group could be Black Britons, which would encompass those people who are both black and who are British citizens.

Religion or Belief

This covers people with religious or philosophical beliefs. To be considered a religion within the meaning of the Act, it must have a clear structure and belief system. The Act includes the following examples: the Baha 'I' faith, Buddhism, Christianity, Hinduism, Islam, Jainism, Judaism, Rastafarianism, Sikhism, and Zoroastrianism.

To be considered a philosophical belief for the Act, it must be:

'Genuinely held; be a belief and not an opinion or viewpoint; be a belief as to a weighty and substantial aspect of human life and behaviour; attain a certain level of cogency, seriousness, cohesion and importance; and be worthy of respect in a democratic society, compatible with human dignity and not conflict with the fundamental rights of others'

The Act cites as examples of philosophical beliefs humanism and atheism. Ethical Veganism is a philosophical belief that is protected under the Equality Act 2010

Refer to the Equality and Diversity Policy for more details.

A cult involved in illegal activities would not satisfy these criteria nor would a particular football team.

People who are of the same religion or belief share the protected characteristic of religion or belief.

Sex (formerly gender)

For the Act, sex means being a man or a woman. Men share sex characteristics with other men and women with other women.

Sexual Orientation

This is defined in the Act as a person's sexual orientation towards:

- People of the same sex as them (in other words a person is a gay man or a lesbian).
- People of the opposite sex from them (the person is heterosexual).
- People of both sexes (the person is bisexual).

People sharing a sexual orientation mean that they are of the same sexual orientation and therefore share the characteristics of sexual orientation.

Discrimination may be direct or indirect. Direct discrimination is deliberate. Discrimination is indirect: when an unnecessary condition or requirement is imposed, whether intentionally or inadvertently, such that the proportion of members of one group who can comply with it is considerably smaller than the proportion of other groups.

Equal Opportunities Policy

Bluestar Care & Support- Bluestar Resourcing is committed to a policy of equal opportunities for all and requires all employees to abide by and adhere to this general principle, and to the requirements of the Code of Practice laid down by the Equality and Human Rights Commission.

In particular in Bluestar Care & Support- Bluestar Resourcing:

- Discrimination on the grounds of race, colour, ethnic or national origin, religion, class, disability, special needs, on grounds of sex or marital status, or membership or non-membership of a trade union will not be practised or tolerated
- Bluestar Care & Support- Bluestar Resourcing expects all employees, of whatever grade or authority, to abide by and adhere to this general principle
- Staff will be promoted, employed and treated fairly based on their ability and merits and accordingly to their suitability and no one will be disadvantaged by a condition or requirement that is not justified by the genuine needs of their job or of the proposed job
- Bluestar Care & Support- Bluestar Resourcing is committed to challenging any form of discrimination it encounters
- To provide equal employment and advancement opportunities to all individuals, employment decisions at Bluestar Care & Support- Bluestar Resourcing will be based on merit, qualifications and abilities
- Employees or aservice user with questions or concerns about any type of discrimination in Bluestar Care & Support- Bluestar Resourcing are encouraged to bring these issues to the attention of Bluestar Care & Support- Bluestar Resourcing management or owner.
- Any breach of this policy should be reported to the on-duty manager or a senior, responsible member of Bluestar Care & Support- Bluestar Resourcing staff; breaches will be dealt with through the Bluestar Care & Support- Bluestar Resourcing disciplinary procedures.

Procedure for Dealing with Complaints of Discrimination

Employees or contracted staff who believe that they are subject to discrimination at work, either by Bluestar Care & Support- Bluestar Resourcing or by another employee, can have recourse to the Bluestar Care & Support- Bluestar Resourcing grievance procedure as set out in their terms of employment. Some discriminatory acts may contravene the Sex Discrimination Act 1975 or theRace Relations Act 1976 . These and other forms of discrimination will be taken seriously by Bluestar Care & Support- Bluestar Resourcing. Failure to comply with the Equal Opportunities Policy and proven acts of discrimination by an employee will be handled under the Bluestar Care & Support- Bluestar Resourcing disciplinary procedure.

Complainants should:

- Record the details of what happened or of the specific nature of the complaint
- Record details of when and where any occurrence took place
- Record the names and contact details of witnesses if appropriate.

All complaints should be dealt with professionally and confidentially.

Training Statement

All staff, during induction, are made aware of the organisation's policies and procedures, all of which are used for

training updates. All policies and procedures are reviewed and amended where necessary and staff are made aware of any changes. Observations are undertaken to check skills and competencies. Various methods of training are used including one to one, online, workbook, group meetings, individual supervision and external courses are sourced as required.

Related Policies

- Appraisal (Domiciliary)
- Bullying And Harassment (Domiciliary)
- Equality, Diversity and Human Rights (Domiciliary)
- Maternity, Paternity, Adoption And Shared Parental Leave (Domiciliary)
- Recruitment And Selection (Domiciliary)
- Recruitment Of Volunteers/Apprentices (Domiciliary)
- Whistleblowing (Domiciliary)

Related Guidance

- Equality and Human Rights Commission: Codes of Practice
- Protected Characteristics
- Gov.UK Discrimination: Your Rights
- The Human Rights Act
- The Equality Act 2010 (Amendment) Regulations 2023

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